

HOUSE No. 2261

The Commonwealth of Massachusetts

PRESENTED BY:

Carol A. Doherty

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ending the criminalization of homelessness.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carol A. Doherty</i>	<i>3rd Bristol</i>	<i>1/16/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/11/2025</i>

HOUSE No. 2261

By Representative Doherty of Taunton, a petition (accompanied by bill, House, No. 2261) of Carol A. Doherty and James K. Hawkins relative to the criminalization of homelessness. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ending the criminalization of homelessness.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 21D of Chapter 40 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by adding the following paragraph at the end thereof:

3 No city or town shall adopt or enforce any ordinance, by-law, rule, or regulation under
4 this section that imposes a monetary penalty or other sanction on homeless individuals solely for
5 the act of trespassing, sleeping, or camping on public property. For the purposes of this section,
6 'homeless individual' shall mean a person lacking a fixed, regular, and adequate nighttime
7 residence. Camping shall mean to sleep in a tent, under a tarp or canopy, in a motor vehicle, or in
8 any other temporary outdoor shelter.